

M/s Maa Vindhyavasini Stone Works v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 3 July 2015 · Writ-C No. 36283 of 2015 · **Writ dismissed; bill and recovery relegated to clause 6.5(b).**

HEADNOTE

A writ is not the proper remedy against electricity bills and a Section 3 recovery notice under the U.P. Government Electrical Undertaking (Recovery of Dues) Act, 1957, where quantification can be challenged under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. A prior complaint that does not mention excessive demand does not establish a pending objection. A new-unit benefit claim may be raised in the 6.5(b) challenge.

FACTUAL SUMMARY

M/s Maa Vindhyavasini Stone Works challenged bills dated 3 October 2014 for Rs. 24,12,707 and a like demand notice under Section 3 of the U.P. Government Electrical Undertaking (Recovery of Dues) Act, 1957, issued by Dakshinanchal Vidyut Vitran Nigam Ltd. Counsel relied on a 10 July 2014 complaint as an objection to an excessive demand despite no consumption. The Court found that complaint did not mention any excessive demand. The petitioner also claimed benefit as a new unit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

clause-6.5b-quantification-dispute

HOLDING

Correctness of electricity bills and a recovery certificate under Section 3 of the U.P. Government Electrical Undertaking (Recovery of Dues) Act, 1957, may be challenged under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. A writ petition is not the proper remedy. A new-unit benefit claim and grievance against the bills can be raised in that quantification challenge. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ is not the proper remedy against electricity bills and a Section 3 recovery notice under the U.P. Government Electrical Undertaking (Recovery of Dues) Act, 1957, where quantification can be challenged under clause 6.5(b) of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE 3 OCTOBER 2014 BILLS, THE RECOVERY CERTIFICATE, AND THE NEW-UNIT BENEFIT CLAIM

Left for a clause 6.5(b) challenge to quantification. ¶ 1